

language and to law. As pointed out by the Court, no such argument can be reasonably made, and Plaintiff's Opposition proves the point.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2402579	ZMILY vs ZMILY	MOTION TO QUASH DEPOSITION SUBPOENAS

Tentative Ruling: Appearances required.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600770	SINGH vs UNIVERSAL PROTECTION SERVICE LP	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

CMC and this Hearing is continued to 1026/26 as Plaintiff requested, and the court agrees, for the opportunity to do limited discovery regarding the execution of the arbitration agreement.

The court must grant a petition to compel arbitration unless it finds either: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP §1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.)

The petition to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (Cal. R. Ct. 3.1330; see *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–219.) “[U]nder this rule, unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) A petitioner is not required to authenticate the respondent's signature on an arbitration agreement as a preliminary matter in the moving papers and is only required to do so if the signature is challenged. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

Defendant has provided an arbitration agreement it contends is electronically signed by Plaintiff. The arbitration agreement is between Plaintiff and Defendant. It applies to all claims that Plaintiff may have against Defendant and Defendant may have against Plaintiff, which could be brought in a court of law, unless otherwise set forth in the